

	Motion for Leave to File 1st Amended Complaint CMC	3.1300, subd. (c).) No response or opposition was filed; therefore, the court cannot deem this defect waived. Plaintiffs are ORDERED to file a Proof of Service showing that the moving papers were served on Defendants, at least 5 court days before the CONTINUED hearing.
5	SBS Trust Deed Network v. Estate of Elaine Thomas 2025-01338514 Motion for Leave to File Cross Complaint	Bourbon Holdings LLC's ("Bourbon Holdings") motion for leave to file a cross-complaint against Randall Sharp is GRANTED. The proposed cross-complaint against Sharp is compulsory since it alleges related causes of action against Sharp. (See Code Civ. Proc. §426.30. subd. (a).) The proposed cross-complaint asserts causes of action for breach of contract and declaratory relief arising from the same written assignment agreement and foreclosure sale surplus proceeds that form the basis of Sharp's Cross-Complaint against Bourbon Holdings and thus satisfies the criteria in section 426.30, subdivision (a). Sharp contends the Motion was not filed in good faith, however, Sharp's evidence does not support a finding that Bourbon Holdings is not acting in good faith. Further, granting leave to file a cross-complaint will not be prejudicial to Sharp since no trial date has been set, discovery remains open, and the case is at an early stage. Moving party to give notice.
6	Mulder v. Abab 2024-01436435 Motion to for Leave to file and serve 1st Amended Answer	The motion of defendants OC Lux Transportation LLC and Mike Abab for an order granting them leave to file a first amended answer to the complaint of plaintiffs David and Jianfen Mulder is GRANTED. Defendants are to file and serve the original first amended answer within five Court days. Discussion. Defendants move for an order granting them leave to file a first amended answer that contains a new affirmative defense for sudden emergency. Plaintiffs oppose the motion, contending that defendants are unfairly attempting to substantially change the scope of the case after nearly two years without explanation. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841.

		A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a). In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. CRC 3.1324(b). Defendants have substantially complied with the requirements of Rule 3.1324. As previously noted, they seek to amend their initial complaint by adding a new affirmative defense for sudden defense. Defendants recently substituted in new counsel who, in reviewing the declaration of defendant Abab, determined that the circumstances of the underlying traffic collision warranted the new defense. To the extent that plaintiffs contend that they will suffer prejudice by the new affirmative defense, defense counsel indicated in the reply that counsel would be willing to stipulate to a trial continuance if other counsel want one. Defense counsel also represented that defendant Abab would be produced for a second deposition concerning the circumstances of the underlying traffic collision if other counsel want one.
7	Ortiz v. City of Fullerton 2025-01457514 Motion for Leave to File Cross Complaint	The unopposed motion of defendants, cross-defendants, and cross-complainants Lansburg Family Trust, and Scott Lansburg for leave to file a first amended cross-complaint is GRANTED. Counsel for moving parties is to file the original first amended cross-cross-complaint and serve copies on all parties within five court days. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841. A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a).